

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

1. JACINTA LASHAE BADELITA V. BOGDANEL BADELITA

22FL0797

On June 26, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging two counts of contempt. There is no Proof of Service for this document therefore the matter is dropped from calendar.

TENTATIVE RULING #1: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

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2. JACOB CLARK V. NICHOLE ROEMER-CLARK

24FL0798

On June 23, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served on August 5, 2026.

Petitioner filed and served his Responsive Declaration to Request for Order on September 2, 2026.

Respondent filed and served her reply declaration on September 10th.

Petitioner filed and served a supplemental declaration on September 14th. The court finds this to be late filed and therefore it has not been read or considered by the court.

Respondent is requesting the following orders: (1) Respondent to have final decision-making authority limited to the implementation of the minor's counseling services; (2) Neither parent shall interfere with, cancel, discourage, or obstruct the minor's counseling appointments once scheduled; (3) School day exchanges shall occur at the minor's school, non-school-day exchanges to occur at Shingle Springs Park and Ride on Rock Barn Rd.; (4) Neither parent shall delay, modify, disrupt, or withhold parenting time because of disagreements regarding exchange logistics; (5) All non-emergency co-parenting communication shall occur through Talking Parents; (6) Communications regarding school deadlines, counseling, medical appointments, exchanges, or other time-sensitive matters shall receive a response within 24 hours, and routine communications to receive a response within 48 hours; (7) Each parent shall notify the other within 48 hours of the minor participating in any extracurricular activity, the notice to include the name of the activity, provider, location, dates, and times; and (8) The minor to be enrolled in a public transitional kindergarten program for the 2026-2027 school year with either Sutter's Mill Elementary, CMP Shingle Springs, or the minor's assigned neighborhood school.

Petitioner argues that the parties have already begun the process of enrolling the minor in therapy and he thus opposes Respondent's requests. He opposes the requests regarding exchanges and asks the court to maintain its prior order that exchanges occur in Cameron Park. He does not oppose a parenting application for communications but asks that the parties utilize Our Family Wizard, which they are already using. He opposes the requested changes regarding extracurricular activities and response deadlines for communications. Finally, Petitioner asks that the minor remain enrolled in Country Day for the 2026-2027 school year.